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## It's time for government to step aside, and let electricity provision devolve to the commons (Part II)

press statement — for immediate release – updated version 24 May 2023

**Muizenberg Electricity Crisis Committee (MECC)**, the *ad hoc* committee formed in February 2023 following the escalation in loadshedding, welcomes the finding made by the Competition Commission that it holds ‘concurrent jurisdiction’ with respect to ‘complaints regarding electricity tariffs’.

In the matter involving [Cape Gate and Emfuleni Local Municipality](#), where the municipality is accused of contravening the Competition Act by charging excessive prices for electricity since 2017, the Tribunal had determined that ‘where there is concurrent jurisdiction, it will have authority unless an express provision ousts its jurisdiction.’

**This is an important first step in normalizing energy provision by bringing electricity pricing under the ambit of the Competition Act. One which implies that greater competition, not less, is what is required.**

MECC wishes to raise the media’s attention to the current government obsession with supply-side economics, a tactic which is calculated to distract and avoid its constitutional responsibilities to enable the supply of low-cost, climate-friendly, renewable energy for all. We urge the government to rather

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energy, and providing consumers with access to energy, and party, operators in an open, renewable energy market.

MECC rejects any inferences made by Minister Pravin Gordan opposing the recent judgment handed down by the North Gauteng High Court that ‘all hospitals, clinics, schools and police stations should be exempt from load shedding’.

As a community organisation, we applaud the High Court’s principled (if currently impractical) finding. We maintain that sustainable and renewable electricity provision within an open marketplace is critical to the future well-being of the country, *especially if we are to avoid climate disaster tipping points and permanent loadshedding.*

The government’s top-down, protectionist framework maintains monopolies and leads to over-reliance on fossil fuel by insisting energy supply is the exclusive domain of the state – this is the exact same rhetoric deployed by the past apartheid regime in furthering monopolistic behavior and maintaining energy poverty.

### **Debate not about Technicalities**

The debate about energy provision should not be about technicalities nor should it be about overall grid capacity and centralisation of costs, given the true extent of the real costs on the ground incurred by lack of availability of electricity to scholars, health facilities and the broader public.

MECC believes that consumers should be provided with genuine choices in electricity provision, with a selection of providers that include energy cooperatives, and that demand-side management and community tariffs should be the order of the day. This can only come about if the grid is opened up to the wheeling of energy by third parties and if Independent Power Producers (IPPs) are allowed to compete on a level playing field:

New Zealand is a good example of a country in which [there are several operators](#), with only three holding a government stake.

France has over [187 ‘energy communities’](#) More than 2,200 consumers and

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Germany is yet another example where citizens have risen to the challenge of providing independent renewable energy. There are countless examples of successful energy cooperatives around the globe.

[Bristol Energy Cooperative in the UK](#) is one of hundreds of projects, delivering renewable energy to local communities under cooperative management.

In addition we believe Energy To The Home (ETTH) is the bare essential for our democracy to function, and that all communities should be empowered to make decisions about their own energy futures. It is Eskom, not environmentalists, nor our own community, which is maintaining energy poverty and it is the government's failure to unbundle its monopoly Eskom, which is at the heart of the current crisis.

We therefore reject the recent statements made in this regard by Minister Gwede Mantashe via SABC. Energy cooperatives and community-scale energy provision, as proposed by MECC are the recommended path forward.

### **Our Application for CIPC Registration**

To this end we intend to lodge an application for registration as an A1 Cooperative with the CIPC providing electricity-related technologies, cost-saving measures and adjunct services, and are exploring future registration and permits as an 'electricity provider' of renewable energy in an interconnected system supported by information technology.

We have already been granted a provisional name registration as the **'Muizenberg Electricity Cooperative'** and intend to formally lodge our application during June 2023.

One of our current projects involves 'Home Storage of Energy'. Feel free to engage our AI Agent, [MuizenGPT](#) on further details. Pressure on government by local communities is essential if the market for electricity is to be opened up to competition from energy cooperatives.

Community development pathways such as we propose, will lead to genuine, sustainable and renewable energy, and are the bare minimum requirements for

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...rapid prototyping of energy storage technology, and provide support for emerging renewable technologies.

We invite all interested and affected parties within the Metro and our local community to join in our collective venture and to assist us with our efforts at attaining low-cost 'energy for all'.

Please welcome further details regarding our **Open Source Energy Festival** on 21st June, 2023, Muizenberg, 5:30 - 10pm.

Sincerely yours,

David Robert Lewis  
chairperson  
on behalf of  
**Muizenberg Electricity Crisis Committee**

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[Load shedding crisis: Muizenberg residents ready themselves to take back the power](#)

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